No 30 United States Consulate
Amoy June 6th 1874

Hon J. L. Henderson Consul
To the Department of State

Subject
Japanese expedition to Formosa &c

Contents
Copy of Pratt's despatch and
translation requesting foreign
Consuls to enforce neutrality laws.

No. 30

United States Consulate
Amoy, June 1st 1874

Hon. E. C. B. Davis
Dept. of State.
Washington D.C

Sir

I have the honor, to inform you that through the courtesy of Commander C. Rauby of the U.S.S. Monocacy, last week, I had the pleasure of visiting Liang Khau bay in Formosa, where the Japanese forces are encamped (see my despatch No 28)

We started from Amoy on the evening of the 25th ultimo and arrived at Takao Roads at sundown on the following day, where we had intended remaining one night, but the weather was so stormy we were unable to land, and after lying at anchor some three hours, proceeded down the coast against a strong S.W. Monsoon.

and at daylight next morning anchored in Langkiaw bay.

This bay is formed by a small curvation in the shore line and affords not the slightest protection against the S.W. Monsoon. Per Consequence a heavy sea was breaking upon the shore in front of the Japanese Camp rendering it impossible for us to communicate with them. After remaining there a few hours the storm became more violent and vessels in the harbor began to drag their anchors. Commander Nash thinking it unsafe to remain and that we could not land for several days, put to sea and returned to Anjer where we arrived on the evening of the 30th.

However, while at Langkiaw we communicated with the British Gunboat "Hornet" and from her officers and other reliable sources, I learned the following facts.

Japanese land force now there numbers about 3000.

The Japanese Corvette "Tsukuba" and transport "Chiyoda" at anchor in the bay and the Japanese gunboat "Takao" and six other vessels had been there but were gone.

These vessels are mainly all commanded by citizens of the United States.

On the 21st the Japanese skirmishers had an engagement with the natives and reports 16 savages killed with one Japanese killed and thirty wounded.

The Japanese have the official Co-operation of the Chinese at Lang Kiaw.

The Chinese Corvette "Yang Woo" and Gunboat "Footing" visited Lang Kiaw on the 23rd instant.

Although I have no official information from any source that Americans are taking part in these operations, I know personally that Lieut. Commander Douglas Cassel U.S.N. and three or four other citizens of the United States accompany

the expedition.

I have the honor to inclose herewith copy of a report and translation of same which I received note to the return from the Chinese Tartar at this port and respectfully request instruction as to course to pursue towards Citizens of the United States implicated.

It will doubtless be remembered that these savages have heretofore been treated as an independent people, not only by foreign governments but by the Chinese themselves, who have not hitherto pretended to claim that part of the island where the savages reside or in any manner be responsible for their conduct. (See Consul LeGendre's dep: No 13 of Feby 25 1868 from the Board of Foreign Affairs to him, dated Feby 7th 1868)

It is to be hoped that this affair will be cleared of the last question of responsibility for the future.

Although the Japs: have landed at a place occupied by Chinese, they claim it is by the express permission of the Imperial Government at Peking

If the difficulty between China and Japan should assume a more formidable shape before I receive instructions to do otherwise, I will enjoin upon American citizens in Formosa the observance of the strictest neutrality.

I have the honor to be, very Respectfully, Your obt Servt

C. Sundeman
U.S. Consul

照會事本年四月初八日准

通商總局移開本年三月三十日奉

總督部堂李 牌開本年三月二十三日接准一月二十七日日本國中將照會

內開台灣土蕃之俗自古嗜殺行刼海客藉難是樂通年我国民人遭風

漂到彼地多被慘害我國委本中將以深入蕃地招彼酋長百般開導並

其凶首薄示懲戒使毋再蹈前轍以安良民即率親兵將由水路直進蕃地

特咨文報明又附片內開琉球島民人六十六名遭風壞船漂到台灣登岸

是處屬壯丹社竟被蕃人刼殺五十四名十二名逃生又偷中州民人刼八等

四名漂至台灣卑南蕃地方亦被刼掠僅脫生命我国政府是以遣使往

攻其心庶使感發天良知有人道而已故本中將雖云率兵而往惟偷土蕃

一味悍暴或敢抗拒來使從而加害不得已則稍示膺懲之勢耳等因前

來本部堂查台灣全地久隸我國版圖雖其土著有生熟蕃之別然同為食

毛踐土二百餘年猶之粵楚雲貴邊界猺獞苗黎之屬皆古所謂我中

來本部堂查台湾全地久隸我國版圖雖其土著有生熟蕃之別然同為食
毛践土二百餘年猶之粤楚雲貴邊界猺獞苗黎之屬皆古所謂我中
國荒服羈縻之地也雖生蕃散處深山獉狉成性文教或有未通政令偶
有未及但居我疆土之内總屬我管轄之人查萬國公法云凡疆内植物動物
居民無論生斯土者自外來者按理皆當歸地方律法管轄又載發得耳
云各國之屬物所在即為其土地又云各國屬地或由尋覓或由征服遷居既
經諸國立約認之即使其間或有來歷不明人皆以此為掌管既久他國即
不應過問又云各國自主其事自任其責據此各條則台湾為中国疆土生
蕃定歸中国隸屬當以中國律法管轄不得任聽別國越俎代謀茲日本
國中將照會以台湾生蕃戕殺遭風難民奉
命率兵深入蕃地殛其凶首以示懲戒在生番聲逞悍暴殺害無辜即按以中
國之法亦律所必誅惟是台湾全地素屬中國日本國政府並未與
總理衙門商允作何辦理遽行命將統兵前往既與萬國公法違背亦與
同治十年所換和約第一第三兩條不合然詳閱來文先云招彼酋長百般開
導使毋再蹈前轍復云雖率兵前往惟係土蕃抗抵不得已始稍示膺懲
是日本国中將之意但在懲辦首凶以杜後患並非必欲用兵所開兩案首
凶其係中州遭風難民前由生蕃送出並未戕害一人當經本部堂派員送還
交領事官送還自枋寮至瑯嶠一帶早經本部堂飭令台湾道委員建造
隘寮選舉隘丁隘首遇有外國遭風船隻以便隨時救護此後日本國商民
來往該地當不至有刼殺之患去歲係中州難民並未被害即其明証其琉
球島即我屬國中山國疆土該国世守外蕃甚為恭順本部堂一視同仁已
嚴檄該地方官責成生蕃頭人赶緊勒限交出首兇議抵總之台湾屬在中
國自辦毋庸日本國代謀各国公使俱在京師必以本部堂為理直除照覆
日本國中將請其撤兵回國以符條約外合行飭局即便知照又先于三月十

隘簇選舉隘丁隘首遇有外國遭風船隻以便隨時救護此後日本國商民來往該地當不至有刼殺之患去歲倘中州難民並未被害即其明証其琉球島即我屬國中山國疆土該国世守外蕃甚為恭順本部堂一視同仁已嚴檄該地方官責成生蕃頭人赶緊勒限交出首兇議抵總之台湾屬在中國自辦毋庸日本國代謀各国公使俱在京師必以本部堂為理真除照覆

日本國中將請其撤兵回國以符條約外合行飭局即便知照又先于三月十八日承准

兵部火票五百里遞到

欽命總理各國事務衙門釘封密函並抄附英国漢文正使梅面遞節畧內開查凡遇稱兵之際局外邦國不得從旁相助今聞日本國有僱覓洋船運送師眾之事本大臣顧全大局自應詢明情由茲以事之最要者四端畧具于左云云其第四條內有日本師眾登岸既經過中國地界核准定議本國屬民或有從于日本以及借力相助等事本國自無深論禁止之責不欽或日本國未向中國議准且所行非中國願從者則本國只得明伸禁令于興師後無論

日本中國公務英民均不得服事相助方足以昭平允該或遵行出示曉諭

申明禁令難免啟中國與日本和好決裂之疑是以明飭各該領事官等未奉大臣續行札文以前不得出示曉諭倘若訪聞英民偶有服事此舉者即

應誡飭以杜輕率各等因奉此除分移查照辦理外合就移請請煩查照希

即轉飭地方各官遵照辦理並就近照會該管各國領事官知照望切施行

凡遇稱兵之際向外邦國不得從旁相助今聞日本國有僱覓洋船運送師
衆之事本大臣顧念大局自應詢明情由茲以事之最要者四端畧具于左云
云其第四條內有日本師衆登岸既經過中國地界核准定議本國黎民或有
役于日本以及借力相助等事本國自無深論禁止之責不然或日本國未向
中國議准且所行非中國願從者則本國只得明伸禁令于興師後無論
日本中國公務英民均不得服事相助方足以昭平允設或違行出示曉諭
申明禁令難免啟中國與日本和好決裂之疑是以明飭各該領事官等未
奉大臣續行札文以前不得出示曉諭倘若訪聞英民偶有服事此舉者即
應誡飭以杜輕率各等因奉此除分移查照辦理外合就移請請煩查照希
即轉飭地方各官遵照辦理並就近照會該管各國領事官知照望切施行
等因准此查此案先奉
督憲牌行正在轉行間茲准前因合就照會為此照會
貴領事查照如或訪聞
貴國民人偶有服事此舉者即應一律誡飭以敦和誼是為至要須至
照會者
右照會
大合衆國欽命駐廈辦理通商事務領事府恒

From Taotai Tin.

To U. S. Minister & Consul Genl and Consul

I have the honor to inform you that on the 8th day of the 4th moon of this year (22nd May) I have had a despatch from the Board of Trade at Foochow stating that on the 3rd day of the 3rd moon of the same year (17th May) a despatch was received by them from Vice Roy of Li of the Fuh Kien and Cheking provinces which says that on the 28th day of the 2nd moon of the same year (May 6th) H. Excellency had received a despatch from the Japanese Commander in chief dated the 29th day of the 2nd moon (April 16th) which says as follows

"From time immemorial the savages of Formosa have always been in the habit of killing and plundering and should they find any person cast ashore or in danger

they become very happy, and not
long ago, several of my countrymen
when overtaken bad weather and
driven on that shore, were kindan
-gered, and murdered by them.
Now, my Government having
appointed me Commander in
Chief to penetrate into the savage country,
summon their headmen, show
them kind feelings in every way,
open their hearts, address the points
and demand the surrender of the
savages who have committed the
murder and have them punished
so as to show good example to
others and prevent a repetition of
the offence hereafter also to protect
future passers by. Therefore I
take my Cruisers with me
to go by sea to the savage country
of Formosa. and to inform you of
my proceedings:
I also inclose another writing
which says that:
"with six Loochoo islanders when
passing Formosa were shipwrecked
on"

Head coast and fifty four men
were murdered and killed by
the Botan tribe, and only 12
escaped.
Another party of men belonging
to Loochoo named Lekus
and three others were also wrecked
on that coast and plundered by
the Botan tribe. But the lives
of four men were spared.
My Government therefore sends
Commissioner to Japan to the
spot, to enquire their hearts and
to make them comprehend human
nature better and show good feelings
towards others.
"As to soldiers with me as a
precaution in case of emergency,
that is to say, if they refuse
to come to terms with us or
endanger our persons then we
cannot help ourselves, and would
be compelled to chastise them a
little which we are bound to
do so."
Here ends the Japanese despatch.
Now,

the Viceroy says:

"I have examined into this affair and find that the whole island of Taiwan has formed a long time in the map of China; that although the aborigines of savage and half-civilized nature have for upwards of 2000 years resided and inhabited themselves in that territory, like Kwangtung, Kwangsi, Hunan, Hupeh, Shensi and Kiangsu which have managed as well and are called Chao, Jung, Mao and Lo, yet they are all in Chinese territory from time immemorial.

According to ancient history these territories belong to China and although the savages inhabit the high mountains, their nature like wild beasts and civilized laws not having been able to reach them nor are we taken notice of by them yet, they reside within the dominions of our territory and are our subjects"

I have also examined into the International laws and find that any living or moving object or inhabitants no matter born in the land or come from abroad are amenable to the laws of the country they reside in. That says that anything in the country of any nation belongs to that nation. He also says that any territory discovered or conquered by any nation and so recognized by Treaty no matter whether it was done fairly or not fairly, and so held for a long time no person has any right to question whether it belongs to them or not. He further says that every nation should attend to its own business and mind to own duty.

I have examined the above facts and find that Formosa actually belongs to China, therefore Chinese laws should be administered to its people and there is no occasion to allow any other nation to interfere with our duties.

The

Japanese Commander in Chief
states in dispatch that the savages
at Formosa had killed Chinese
people and endangered them and
that he had received orders to
proceed to the savage territory and
punish the principal guilty party
life for life. also to take such steps
a action for the future because
they are very excited and have
been always killing Chinese
people. According to the law
of China they must be punished.
Formosa belongs to China a long
time ago. The Japanese Govmt
without consulting the Tsung li
Yamen as to how and in what
manner the affair is to be settled
send a Commander in chief and
troops at once to that place. This
is against international law and
does not agree with the 7th and 9th
articles of the Japanese Treaty
with China - which was ratified
in the tenth year of Tung Chih.
And now, after carefully examining
everything

"the head chief of the Japanese dispatch says that they
took steps for the strongest chief
to open them hearts and persuade
them not to repeat the offence
against Chinese subjects through they
are Commander in chief
Formosa to proceed at once
to the territory of the savages who
are not under the control of China.
Both regard to the two complaints
already made by the Japanese
the authorities to the Peking
Govt mean, I have to remark
that none of the men were hurt
and that they were handed over
to the authorities who had sent
them to the Japanese Consul at
Shanghai three deputies appointed
by"

"me and thus they were returned to
their homes.

Sometime ago I ordered the
Harbour Master at Lomasa
to erect watch towers, later
from Pang Lin to Hong Kong and
soldiers and volunteers were station-
-ed all along, in order to protect
foreigners and others who may
be Customaway in that inhospitable
shore. Certainly, after this, any
Japanese merchantmen passing
to and fro that coast will not be
molested.

Last year when the Chungking
men were drawn there, many
got hurt. This is a proof
that the Loochoo island is de facto
and is called by the Chinese Chong shan
-ly to China. Both the King and
inhabitants have full respect
towards China. I value their
lives equally as my people &
have given special orders to the
Chinese authorities to make the
savages responsible & to deliver
the men who have done wrong
and"

have them punished duly for life
and property, & may that Formosa be
no longer to obtain, and it is the duty
who have to arrange their own
affairs. But it is not necessary to
extend the Japanese to assist in any
way for us.

All the foreign Ministers at
Peking with whom I met and
say that the Formosa Expedition
seems quite reasonable.

I have also addressed the Japanese
Commander in Chief in the same
way and requested him to take
his troops back to his country
and act in accordance with
treaty.

I have also addressed on the
same day to the Board of Trade
a Proclamation to notify the public
in general.

On the 28th day of the 3rd Moon
(13th May) the Board of Trade
received a letter from the Superintendent
of Customs, Inspector General, Woong,
stating that on the same day
(13th May)

"they & the Loan Department by time was received
post", a secret communication from
the "Tsung li yamen", copied from
an official memo: by H.B. the
Principal Chinese Secretary "Hai"
& by him personally handed to the
Tsung li yamen

It says as follows.

Whenever the party sent to war
with another party foreign nations
are not allowed to work under
hand by assisting them.

I am now given to understand
that the Japanese have hired foreign
vessels to convey their soldiers etc
and H. Minister, wishing to
preserve public interests, ought
to investigate into the matter

There are four rules to be observed.

Rule 4th says as follows:
As the Japanese have procured
to China planned on Chinese
territory. I make a particular
rule that if my country's
subjects should serve the Japanese
and help them by their power
and"

"influence, no matter whether it
be by Government's ship of merchant
ships or not, even if the Japanese
have the application of the Chinese
Government or not, my Govern-
ment will give orders to her
when things appear and that a
British subject can serve
neither the Japanese nor Chinese
Government. This will be fair
and just. Now I to give notice
just now. it will cause the
Japanese and Chinese to break
friendship. I have plainly
given orders to my respective
Consuls not to notify to the
people as yet before they hear
from me again.

Should British subjects have
any thing to do with this affair
The Consuls are to discourage
them and prevent them from
having any thing to do with it."
(End of the Chicago despatch)

Now says the Board of Trade
"That on receipt of this despatch
they"